

National Forest Policy, 1988

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National Forest Policy, 1988

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National Forest Policy, 1988

Resolution No. 3-1/86-FP, dated the 7th December, 1988

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[Ministry of Environment and Forests

(Department of Environment Forests & Wild Life)

Paryavaran Bhavan, C.G.O. Complex Lodi Road, New Delhi-110003]

1.

Preamble.

- 1.1. In Resolution No. 13/52-F, dated the 12th May, 1952, the Government of India in the erstwhile Ministry of Food and Agriculture enunciated a Forest Policy to be followed in the management of State Forests in the country. However, over the years, forests in the country have suffered serious depletion. This is attributable to relentless pressures arising

from ever increasing demand for fuelwood, fodder and timber, inadequacy of protection measures; diversion of forest lands to non-forest uses without ensuring compensatory afforestation and essential environmental safeguards; and the tendency to look upon forests as revenue earning resource. The need to review the situation to evolve, for the future, a new strategy of forest conservation has become imperative. Conservation includes preservation, maintenance, sustainable utilisation, restoration and enhancement of the natural environment. It has thus, become necessary to review and revise the National Forest Policy.

2.

Basic Objectives.

- 2.1. The basic objectives that should govern the National Forest Policy are the following :-

- Maintenance of environmental stability through preservation and where necessary, restoration of the ecological balance that has been adversely disturbed by serious depletion of the forests of the country.
- Conserving the natural heritage of the country by preserving the remaining natural forests with the vast variety of flora and fauna, which represent the remarkable biology diversity and genetic resources of the country.
- Checking soil erosion and denudation in the enactment areas of rivers, lakes, reservoirs in the interest of soil and water conservation, for mitigating floods and droughts and for the retardation of siltation of reservoirs.
- Checking the extension of sand-dunes in the desert areas of Rajasthan and along the coastal tracts.
- Increasing substantially the forest/tree cover in the country through massive afforestation and social forestry programmes, especially on all denuded, degraded and unproductive lands.
- Meeting the requirements of fuelwood, fodder, minor forest produce and small timber of the rural and tribal populations.
- Increasing the productivity of forests to meet essential national needs.
- Encouraging efficient utilisation of forest produce and maximising substitution of wood.
- Creating a massive people's movement with the involvement of women for achieving these objectives and to minimise pressure on existing forests.

2.2

The principal aim of Forest Policy must be to ensure environmental stability and maintenance of ecological balance including atmospheric equilibrium which are vital for sustenance of all life forms, human, animal and plant. The derivation of direct economic benefit must be subordinated to this principal aim.

3.

Essentials of Forest Management.

- 3.1. Existing forest lands should be fully protected and their productivity improved. Forest and vegetal cover should be increased rapidly on hill slopes, in catchment areas of rivers, lakes and reservoirs, and ocean shores and on semi-arid, arid and desert tracts.

3.2

Diversion of good and productive agricultural lands to forestry should be discouraged in view of the need for increased food production.

3.3

For the conservation of total biological diversity, the network of national parks, sanctuaries, biosphere reserves and other protected areas should be strengthened and extended adequately.

3.4

Provision of sufficient fodder, fuel and pasture, specially in areas adjoining forest, is necessary in order to prevent depletion of forests beyond the sustainable limit. Since fuelwood continues to be the predominant source of energy in rural areas, the programme of afforestation should be intensified with special emphasis on augmenting fuelwood production to meet the requirement of the rural people.

3.5

Minor forest produce provides sustenance to tribal population and to other communities residing in and around the forests. Such produce should be protected, improved and their production enhanced with due regard to generation of employment and income.

4.

Strategy.

- 4.1. Area under forests. - The national goal should be to have a minimum of one one-third of the total land area of the country under forest or tree cover. In the hills and in mountainous regions, the aim should be to maintain two-third of the

area under such cover in order to prevent erosion and land degradation and to ensure the stability of the fragile eco-system.

4.2

Afforestation, social forestry and forestry. - 4.2.1. A massive need based and time bound programme of afforestation and tree planting, with particular emphasis on fuelwood and fodder development, on all degraded and denuded lands in the country, whether forest or non-forest land, is a national imperative.

4.2.2

. It is necessary to encourage the planting of trees along side of roads, railway lines, rivers and streams and canals, and on other unutilised lands under state/corporate, institutional or private ownership. Green belts should be raised in urban/industrial areas as well as in arid tracts. Such a programme will help to check erosion and desertification as well as improve the micro-climate.

4.2.3

. Village and community lands, including those on foreshores and environs of tanks, not required for other productive uses, should be taken up for development of tree crops and fodder resources. Technical assistance and other inputs necessary for initiating such programmes should be provided by the Government. The revenues generated through such programmes should belong to the Panchayats where the lands are vested in them; in all other cases, such revenues should be shared with the local communities in order to provide an incentive to them. The vesting, in individuals, particularly from the weaker sections (such as landless labour, small and marginal farmers, scheduled castes, tribals, women) of certain ownership rights over trees, could be considered, subject to appropriate regulations; beneficiaries would be entitled to usufruct and would in turn be responsible for their security and maintenance.

4.2.4

. Land laws should be so modified wherever necessary so as to facilitate and motivate individuals and institutions to undertake tree farming and grow fodder plants, grasses and legumes on their own land. Wherever possible, degraded lands should be made available for this purpose either on lease or on the basis of a tree patta scheme. Such leasing of the land should be subject to the land grant rules and land ceiling laws. Steps necessary to encourage them to do so must be taken. Appropriate regulation should govern the felling of trees on private holding.

4.3

Management of State Forests. - 4.3.1. Schemes and projects which interfere with forest that clothe steep slopes, catchments of rivers, lakes and reservoirs, geologically unstable terrain and such other ecologically sensitive areas should be severely restricted. Tropical rain/moist forests, particularly, in areas like Arunachal Pradesh, Kerala, Andaman and Nicobar Islands, should be totally safeguarded.

4.3.2

. No forest should be permitted to be worked without the Government having approved the management plan, which should be in a prescribed format and in keeping with the National Forest Policy. The Central Government should issue necessary guidelines of the State Government in this regard and monitor compliance.

4.3.3

. In order to meet the growing needs for essential goods and services which the forests provide, it is necessary to enhance forest cover and productivity of the forest through the application of scientific and technical inputs. Production of forestry programmes, while aiming at enhancing the forest cover in the country and meeting national needs, should also be oriented to narrowing, by the turn of the century, the increasing gap between demand and supply of fuelwood. No such programme however, should entail clear felling of adequately stocked natural forests. Nor should exotic species be introduced, through public or private sources, unless long term scientific trials undertaken by specialists in ecology, forestry and agriculture have established that they are suitable and have no adverse impact on native vegetation and environment.

4.3.4

. Right and concessions. - 4.3.4.1. The right and concessions, including grazing, should always remain related to the carrying capacity of forests. The capacity itself should be optimised by increased investment, silvicultural research and development of the area. Stall feeding of cattle should be encouraged. The requirements of the community, which cannot be met by the rights and concessions so determined, should be met by development of social forestry outside the reserved forest.

4.3.4.2

. The holders of customary rights and concessions in forest areas should be motivated to identify themselves with the protection and development of forests from which they derive benefits : The rights and concessions from forests should primarily be for the bona fide use of the communities living within and around forest areas, specially the tribals.

4.3.4.3

. The life of tribals and other poor living within and near forest revolves around forest. The rights and concessions enjoyed by them should be fully protected. Their domestic requirements of fuelwood, fodder, minor forest produce and construction timber should be the first charge on forest produce. These and substitute materials should be made available through conveniently located depots at reasonable prices.

4.3.4.4

. Similar consideration should be given to scheduled castes and other poor living near forests. However, the area, which such consideration should cover, would be determined by the carrying capacity of the forests.

4.3.5

. Wood is in short supply. - The long term solution for meeting the existing gap lies in increasing the productivity of forests, but to relieve the existing pressure on forests for the demands of railway sleepers, construction industry (particularly in the public sector), furniture and panelling, mine-pit-props, paper and paperboard etc. substitution of wood needs to be taken recourse to. Similarly, on the front of domestic energy, fuelwood needs to be substituted as far as practicable with alternate sources like bio-gas, LPG and solar energy. Fuel-efficient "Chulhas" as a measure of conservation of fuel wood need to be popularised in rural areas.

4.4

Diversion of forest lands for non-forest purposes. - 4.4.1. Forest land or land with tree cover should not be treated merely as resource readily available to be utilised for various projects and programmes, but as a national asset which requires to be properly safeguarded for providing sustained benefits to the entire community. Diversion of forest land for any non-forest purpose should be subject to the most careful examinations by specialists from the stand point of social and environmental costs and benefits. Construction of dams and reservoirs, mining and industrial development and expansion of agriculture should be consistent with the needs for conservation of trees and forest. Projects which involve such diversion should at least provide in their investment budget, funds for regeneration/compensatory afforestation.

4.4.2

. Beneficiaries who are allowed mining and quarrying in forest land and in land covered by trees should be required to repair and re-vegetate the area in accordance with established forestry practices. No mining lease should be granted to any party, private public, without a proper mine management plan appraised from the environmental angle and enforced by adequate machinery.

4.5

Wildlife conservation. - Forest management should take special care of the needs of wildlife conservation and forest management plans should include prescriptions for this purpose. It is specially essential to provide for "corridors" linking the protected areas in order to maintain genetic continuity between artificially separated sub-sections of migrant wild life.

4.6

Tribal people and forests. - Having regard to the symbiotic relationship between the tribal people and forests, a primary task of all agencies responsible for forest management, including the forest development corporations should be to associate the tribal people closely in the protection, regeneration and development of forests as to provide gainful employment to people living and around the forest. While special attention to the following :

- One of the major causes for degradation of forest is illegal cutting and removal by contractors and their labour. In order to put an end to this practice, contractors should be replaced by institutions such as tribal co-operatives, labour co-operatives, government corporations, etc. as early as possible;
- Protection, regeneration and optimum collection of minor forest produce along with institutional arrangements for the marketing of such produce;
- Development of forest villages on par with revenue villages;
- Family oriented schemes for improving the status of the tribal beneficiaries; and
- Undertaking integrated area development programmes to meet the needs of the tribal economy in and around the forest areas, including the provision of alternative sources of (domestic energy on a subsidised basis, to reduce pressure on the' existing forest areas.

4.7

Shifting cultivation. - Shifting cultivation is affecting the environment and productivity of land adversely. Alternative avenues of income, suitably harmonised with the right land use practices, should be devised to discourage shifting cultivation. Efforts should be made to contain such cultivation within the area already/affected, by propagating improved agricultural practices. Area already damaged by such cultivation should be rehabilitated through social forestry and energy plantations.

4.8

Damage to forests from encroachments, fires and grazing. - 4.8.1. Encroachment on forest lands has been on the increase. This trend has to be attested and effective action taken to prevent its continuance. There should be no regularisation of existing encroachments.

4.8.2

. The incidence of forest fires in the country is high. Standing trees and fodder are destroyed on a large scale and natural regeneration annihilated by such fires. Special precautions should be taken during the fire season. Improved and modern management practices should be adopted to deal with forest fires.

4.8.3

. Grazing in forest areas should be regulated with the involvement of the community. Special conservation areas, young plantations and regeneration areas should be fully protected. Grazing and browsing in forest areas need to be controlled. Adequate grazing fees should be levied to discourage people in forest areas from maintaining large herds of non essential livestock.

4.9

Forest based industries. - The main considerations governing the establishment of forest based industries and supply of raw material to them should be as follows :

- As far as possible, a forest based industry should raise the raw material needed for meeting its own requirements, preferably by establishment of a direct relationship between the factory and the individuals who can grow the raw material by supporting the individuals with inputs including credit, constant technical advice and finally harvesting and transport services.
- No forest based enterprise, except that at the village or cottage level, should be permitted in the future unless it has been first cleared after a careful scrutiny with regard to assured availability of raw material. In any case, the fuel, fodder and timber requirements of the local population should not be sacrificed for this purpose.
- Forest based industries must not only provide employment to local people on priority but also involve them fully in raising trees and raw material.
- Natural forest serve as a genepool resource and help to maintain ecological balance. Such forests will not, therefore, be made available to industries for undertaking plantation and for any other activities.
- Farmers, particularly small and marginal farmers would be encouraged to grow, on marginal/degraded lands available with them, wood species required for industries. These may also be grown along with fuel and fodder species on community lands not required for pasture purposes, and by Forest department/corporations on degraded forests, not earmarked for natural regeneration.
- The practice of supply of forest produce to industry at concessional prices should cease. Industry should be encouraged to use alternative raw materials. Import of wood and wood products should be liberalised.
- The above considerations will however, be subject to the current policy relating to land ceiling and land laws.

4.10

Forests extension. - Forest conservation programme cannot succeed without the willing support and co-operation of the people. It is essential, therefore, to inculcate in the people, a direct interest in forests, their development and conservation, and to make them conscious of the value of trees, wild life and nature in general. This can be achieved through the involvement of educational institutions, right from the primary stage. Farmers and interested people should be provided opportunities through institutions like Krishi Vigyan Kendras, Trainers Training Centres to learn agri-silvicultural and silvicultural techniques to ensure optimum use of their land and water resources. Short term extension courses and lectures should be organised in order to educate farmers. For this purpose it is essential that suitable programmes are propagated through mass media, audio visual aids and the extension machinery.

Forestry should be recognised both as a scientific discipline as well as a profession. Agriculture universities and institutions dedicated to the development of forestry education should formulate curricula and courses for imparting academic education and promoting post-graduate research and professional excellence, keeping in view the manpower

needs of the country. Academic and professional qualifications in forestry should be kept in view for recruitment to the Indian Forest Service and the State Forest Service. Specialised and orientation courses for developing better management skill by in service training need to be encouraged, taking into account the latest development in forestry and related disciplines.

4.12

Forestry Research. - With the increasing recognition of the important of forests for environmental health, energy and employment, emphasis must be laid on scientific forestry research, necessitating adequate strengthening of the research base as well as new priorities for action. Some broad priority areas of research and development needing special attention are :

(i)

Increasing the productivity of wood and other forest produce per unit of area per unit time by the application of modern scientific and technological methods.

(ii)

Revegetation of barren/marginal/waste/mined lands and water shed areas.

(iii)

Effective conservation and management of existing forest resources (mainly natural forest eco-systems).

(iv)

Research related to social forestry for rural/tribal development.

(v)

Development of substitutes to replace wood and wood products.

(vi)

Research related to wildlife and management of national parks and sanctuaries.

4.13

Personnel Management. - Government policies in personnel management for professional forest scientists should aim at enhancing their professional competence and status and attracting and retaining qualified and motivated personnel, keeping in view particularly, the arduous nature of duties they have to perform, often in remote and inhospitable places.

4.14

Forest Survey and Data Base. - Inadequacy of data regarding forest resources is a matter of concern because this creates a false sense of complacency. Priority needs to be accorded to completing the survey of forest resources in the country on scientific lines and to updating information. For this purpose, periodical collection, collation and publication of reliable data on relevant aspects of forest management needs to be improved with recourse to modern technology and equipment.

4.15

Legal support and infrastructure development. - Appropriate legislation should be undertaken, supported by adequate infrastructure at the Centre and State level in order to implement the policy effectively.

4.16

Financial support for forestry. - The objectives of this revised policy cannot be achieved without the investment of financial and other resources on a substantial scale. Such investment is indeed fully justified considering the contribution of forests in maintaining essential ecological processes and life support system and in preserving genetic diversity. Forests should not be looked upon as a source of revenue. Forests are a renewable natural resource. They are a national asset to be protected and enhanced for the well being of the people and the nation.

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